

Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes, in rural areas) Rules, 2007

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State of Rajasthan - Act

Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes, in rural areas) Rules, 2007

RAJASTHAN

India

Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes, in rural areas) Rules, 2007

Rule

RAJASTHAN-LAND-REVENUE-CONVERSION-OF-AGRICULTURAL-LAND-FOR-NON-AGRICULTURAL-PURPOSES-
IN-RURAL-AREAS-RULES-2007 of 2007

Published on 2 April 2007

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Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes, in rural areas) Rules, 2007

Published vide Notification No. G.S.R. 1 Notification No. F6 (6)/Revenue-6/92/Part/14, dated 2-4-2007, Published in Rajasthan Gazette Part 4-C(1) dated 5.4.2007

Last Updated 10th June, 2019

G.S.R. 1. - In exercise of the powers conferred by clause (xi-A) of sub-section (2) of section 261 read with section 90-A of the Rajasthan Land Revenue Act, 1956 (Rajasthan Act

No. 15 of 1956

), the State Government hereby makes the following rules for conversion of Agricultural land for non-agricultural purposes in rural areas; namely-

1.

Short title, extent and commencement.

(1)

These rules may be called the Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes, in rural areas) Rules, 2007.

(2)

They shall extend to all rural areas in the State of Rajasthan.

(3)

These rules shall come into force on the date of their publication in the Official Gazette.

[Note - These rules published in Rajasthan Government Gazette Extraordinary Part IV-C(1) dated 5-4-2007 at Page 1(1) to 1(21).]

2.

Definition.

(1)

In these rules, unless there is any thing repugnant to the subject or context;

(a)

"Act" means the Rajasthan Land Revenue Act, 1956 (Rajasthan. Act

No. 15 of 1956

);

(aa)

["Agri-business" means large-scale business that derives most of its revenue from agriculture and shall include production, processing, manufacturing and distribution of agricultural products.

[Inserted vide Notification No. F. 6(6) Rev-6/92/Part/24 dated 14-10-2010. published in Rajasthan Government Gazette Part (IVC) dated 29-12-2010.]

(aaa)

"Agro processing" means process that use agricultural products, agri-waste and intermediate agricultural products to produce products in a manner that there is a transformation in the nature of the agricultural product at the six digit level in the Indian Trade Classification (Harmonised System) and there must be at least 30% value addition.]

(aaaa)

["Ceiling area" means the maximum area of agricultural land as defined in clause (d) of Section 2 of the Rajasthan Imposition of Ceiling on Agricultural Holdings Act, 1973 (Act No. 11 of 1973);]

[Inserted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(b)

"Commercial purpose" means the use of any premises for any trade or commerce or business, which shall include a shop, commercial establishment, bank, office, guest house, hostel, hotel, restaurant, dhaba (whether pucca or temporary structure), show-room, cinema, multiplex, petrol pump, explosive magazine, weigh bridge, godown, workshop or any other commercial activity and shall also include the use thereof partly for residential and partly for commercial purposes but shall not include tourism units;

(c)

"Developer" means a person, who desires or undertakes sub-division, reconstitution or improvement of plots;

(d)

District Level Committee' means the committee constituted by the State Government for a district from time to time under clause (b) of sub-rule (1) of rule 2 of the Rajasthan Stamps Rules, 2004;

(e)

"Form" means a form appended to these rules,

(ee)

[Hydrocarbon exploration purpose means use of land for the purpose of exploration and production of hydrocarbons including its processing and storage facilities like terminals, well pads, warehouses, pipelines and its associated facilities.]

[Inserted by Rajasthan Notification No. G.S.R. 35, dated 24.4.2017 (w.e.f. 5.4.2007).]

(f)

["Industrial Areas/Industrial Estate" means an area of land developed by the Rajasthan Industrial Development and Investment Corporation or private investors as the case may be, for setting up an industry or industries including essential welfare and supporting services e.g. Post Office, Residential colony for employees, Educational Institutions, Cold storage,, Pollution control treatment plant, Electric Power Station, and Water-supply and Sewerage facilities, Dispensary or Hospital, Bank, Police Station, Fire-fighting Station, Weigh bridge;]

[Substituted by G.S.R. 6 Notification No. F 6(6) Revenue 6/92/Part/8 dated 20-3-2008 Published in Rajasthan Gazette Part (IV)(C) I dated 5-4-2008.]

(g)

"Industrial purpose" means the use of any premises or workshop or an open area for any industry including information Technology Industry, whether a small or medium or large scale unit, or a tourism unit and shall include a brick kiln or a kiln but shall not include any premises used for a purpose as defined in clause (b),

(h)

"Institution purpose" means the use of any premises or an open area by any establishment, organization or association for the promotion of some object specially of general utility, charitable, educational or like nature, except public utility purpose;

(i)

"Medical facilities" shall include Clinics, dispensaries, Medical hospitals, diagnostic centres and Nursing-homes;

(j)

"Master Plan Area" means the area covered by Master Plan prepared and approved for any urban area in accordance with the provisions of the Rajasthan Urban Improvement Act. 1959 (Act no. 35 of 1959), Jaipur development Authority Act. 1982 (Act No.25 of 1982);

(jj)

["Micro and small enterprise" means micro and small enterprise as defined in the Micro, Small and Medium Enterprises Development Act, 2006 (Central Act No. 27 of 2006)) and]

[Inserted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(k)

"Peripheral Belt" means the peripheral belt as indicated in the Master Plan or Master Development Plan of a city or a town prepared under any law for time being in force and where there is no Master Plan or Master Development Plan or where peripheral belt is not indicated in such plan, the area as may be notified by the State Government in the Urban Development and Housing Department from time to time and where any part of a village falls within the peripheral belt, the whole village shall be deemed to be within the peripheral belt;

(l)

"Person" means a human being and shall include a firm, registered society, association of persons, corporate body or any other legal person;

(ll)

["Petroleum and petrochemical installation" means any premises wherein any place has been specially prepared for the storage of petroleum in bulk, but does not include a well-head tank or a service station;]

[Inserted by Notification No. G.S.R. 22, dated 8.5.2015 (w.e.f 5.4.2007).]

(m)

"Prescribed Authority" means the authority as prescribed in rule 9;

(n)

"Public Utility Purpose" means dharmshala, religious place, gaushala or public park;

(o)

"Rural Area" means an area which is not included in the notified area of urban bodies and their periphery belts;

(p)

"Residential unit" means use of any premises for dwelling of human beings not exceeding area of [2500]

[Substituted for '1250' Notification No. F9(101) Revenue-6/2008/20 dated 17.9.2008 Published in Rajasthan Gazette Extraordinary Part IV-c (i) dated 26-9-2008.]

sq. meters;

(q)

"Residential Colony/Project" means residential plots/flats/house being developed by Developer to sale further to interested persons;

(qq)

['SEZ' means Special Economic Zone notified under the provisio to sub-section (4) of section 3 and sub-section (1) of section 4 of the Special Economic Zone Act, 2005 (Act No. 28 of 2005) including free trade and warehousing zone.]

[New Cluase (qq) inserted vide Notification No. F. 6(6) Revenue VI/92/Part IV/13 dated 15.5.2008, published in Rajasthan Gazette Part IV-C(I) dated 26.5.2008.]

(qqq)

["service station" means any premises specially prepared for the fuelling of motor vehicles and includes such places within the premises which have been specially approved by the licensing authority for the servicing of motor vehicles and for other purposes;]

[Inserted by Notification No. G.S.R. 22, dated 8.5.2015 (w.e.f 5.4.2007).]

(qqqq)

[]

[Renumbered '(r)' by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

"Tourism Unit" means tourism project of the following categories approved by the Tourism Department, Government of Rajasthan-

(a)

a heritage hotel,

(b)

any other hotel with accommodation of 25 rooms and more;

(c)

a camping site with furnished tented accommodation, having at least fifty tents along with bathroom and toilet facilities;

(d)

a holiday resort providing sports and recreational facilities, riding, swimming and social amenities with boarding and lodging arrangements ill cottage;

(e)

an amusement park providing various type of rides, games and amusement for children as well as for adults; and

(f)

a restaurant or project costing more than 1 crore rupees (verified by SDO),

(r)

['Tourism Unit' means tourism project of the following categories approved by the Tourism Department, Government of Rajasthan -

[Substituted by Notification No. G.S.R. 6, dated 20.3.2008.]

(a)

s heritage hotel,

(b)

any other hotel with accommodation of 25 rooms and more:

(c)

a camping site with furnished tented accommodation, having at least fifty tents along with bathroom and toilet facilities;

(d)

a holiday resort providing sports and recreational facilities, riding, swimming and social amenities with boarding and lodging arrangement in cottage;

(e)

an amusement park providing various type of rides, games and amusement for children as well as for adults; and

(f)

a restaurant or project costing more than 1 crore rupees (verified by SDO)]

(s)

"Urban Bodies" means bodies constituted under the Rajasthan Municipalities Act, 1959 or the Rajasthan Urban Improvement Act, 1959. (Act No. 35 of 1959) or the Jaipur Development Authority Act, 1982 (Act No. 25 of 1982) and

(t)

["Wind Power Plant" means a group of wind tubines in the same location used for production of election power.]

[Added by Rajasthan Notification No. G.S.R. 31, dated 24.4.2013.]

(2)

Words and expressions, not defined in these Rules but defined in the Act, shall wherever used in these Rules, be construed to have the same meaning as assigned to them in the Act.

3.

Purposes for which Agricultural land may be converted.

- Any agricultural land held in the Khatedari tenancy of the applicant, may be converted in rural area for the following purposes-

(i)

Residential unit

(ii)

Residential Colony/ Project

(iii)

Commercial purpose

(iv)

[Industrial purpose/Industrial area/Industrial Estate]

[Substituted vide Notification No. F. 6(6) Revenue VI/92/Part IV/13 dated 15.5.2008, published in Rajasthan Gazette Part IV-C(I) dated 26.5.2008.]

(v)

Salt manufacturing purpose

(vi)

Public Utility purpose

(vii)

Institutional purpose

(viii)

Medical facilities.

(ix)

[Development of SEZ]

[Inserted vide Notification No. F. 6(6) Revenue VI/92/Part IV/13 dated 15.5.2008, published in Rajasthan Gazette Part IV-C(I) dated 26.5.2008.]

(x)

[Agro-processing and Agri-business unit.

[Added by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

(xi)

Solar power plant.]

4.

Land for which conversion not to be permitted.

- No permission shall be granted for conversion, of the -

(a)

[the Right to Fair Compensation and Transparency in Land Acquisition Rehabilitation and Resettlement Act, 2013 (Central Act No. 30 of 2013);]

[Substituted 'The Land Acquisition Act 1894' by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(b)

Land falling within the boundary limits of any Railway Line. National Highway. State Highway or any other road maintained by the Central or State Government or any Local Authority as specified in any Act or Rules of the Central or State Government made in this behalf, or within the limit specified in the guidelines of the Indian Road Congress for establishment of industry from the middle point of National Highway/State Highway/Major District Road/Other District Road/Rural Roads, whichever is longer;

(c)

Land falling within the radius of 1.5 km of outer limits of abadi of a village for the purpose of an industrial unit of lime kiln or a crusher Unit or an Industrial area. This restriction shall not apply where the conversion is sought for the brick kiln or non-polluting Industry, small or cottage industry. [This restriction shall also not apply for the establishment of any class of industry within the radius as specified in the guidelines of Rajasthan State Pollution Control Board;]

[Added by Notification No. G.S.R. 12, dated 17.4.2015 (w.e.f. 5.4.2007).]

(d)

Land falling under catchment areas of 'tank or village pond, river, nala, tank lake or land used as pathway to any cremation or burial ground or village pond, even if not, so recorded in the village revenue map or revenue record.

(e)

[Land falling within the radius of 10 meter of boundaries of right of way of underground pipeline of all companies.

[Clauses (e) to (g) of Rule 4 added vide Notification No. F. 6(6) Revenue VI/92/Part IV/13 dated 15.5.2008, published in Rajasthan Gazette Part IV-C(I) dated 26-5-2008.]

(f)

Land falling within the radius of 50 meter of boundaries of oil companies storage depots.

(g)

Land or Building restricted under rule 79 and 80 of the Indian Electricity Rules, 1956.]

(h)

[Land falling within the radius of 1 .5 km. of boundaries of defence ordinance depot.]

[Added by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

5.

Conversion for Dwelling House, cattle-shed or Store-house without conversion charges.

- A Khatedar tenant shall be entitles to convert his agricultural holding for construction of a dwelling house or cattle shed or store house on an area not exceeding 500 Sq. mts. without any conversion charges payable under rule 7. The area so converted shall continue to be in his khatedari tenant.

6.

[Use of khatedari land for establishment of small scale industries and kjava etc.

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

- Notwithstanding anything contained in these rules, no permission for conversion shall be required where a Khatedar tenant desires to establish micro, small scale industrial unit, kjava (small brick kiln) or desires to use of land for the purpose of institutional, medical facilities or public utility on his own khatedari land upto an area not exceeding one acre. The area so used shall continue to be in his khatedari.]

6A.

[Use of Khatedari land for Agri-business activity.

[Inserted vide Notification No. F. 6(6) Revenue 6/92/Part/24 dated 14.12.2010, Published in Rajasthan Gazette Part (IV)(C) dated 29.12.2010.]

- Notwithstanding anything contained in these rules, a khatedar tenant may use upto 5% area of his khatedari land for Agri-business activities and such activities shall be treated as agricultural operation and no conversion shall be required. The area so used shall continue to be in his khatedari.]

7.

Conversion charges.

- The premium payable for conversion of agricultural land for non-agricultural purposes, fro the area not [covered by Rule 5, 6, 6-A 6-B & 6-C]

[Substituted 'covered by rule 5 and 6,' by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

shall be as under:

[Purpose

[Substituted by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

Rate

(i) Residential unit

Rs. 5/- per sq. mts. or 5% amount of the DLC rate of agriculture land or 5% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(ii) Residential Colony/Project

Rs. 7.50 per sq. mtrs. or 7.5% amount of the DLC rate of agriculture land or 7.5% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(iii) Commercial purpose

Rs. 107/- per sq. mts. or 10% amount of the DLC rate of agriculture land or 10% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(iv) Industrial Area/Industrial purpose/ Industrial Estate

Rs.5/- per sq. mts. or 5% amount of the DLC rate of agriculture land, or 5% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(v) Salt manufacturing purpose

Rs.0.50 per sq. mts. or 0.5% amount of the DLC rate of agriculture land, or 0.5% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(vi) Public Utility purpose

Without premium up to 10,000 sq. meters and Rs. 5/- per sq. meters or 5% of DLC rate or 5% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, for area exceeding 10,000 sq. meters, whichever is higher.

(vii) Institutional purpose

Rs.5/- per sq. meters or 10% of DLC rate of agricultural land or 10% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher

(viii) Medical Facilities.

Rs. 10/- per sq. meters or 10% of DLC rate of agriculture land or 10% amount of the purchase rate of that agricultural land as mentioned in registered sale deed, if any, whichever is higher.

(ix) For development of SEZ

Rs. 100/- (irrespective of the area of land.)

(x) Agri-processing and Agri-business unit

50% of rate as prescribed for industrial purpose.

(xi) Solar Power Plant.

10% of the rate as prescribed for industrial purpose.]

8.

Exemption of conversion charges.

(1)

No conversion charges shall be payable by any department of State Government or a local authority for conversion of land for non-agricultural purpose for any official use.

(2)

[No conversion charges, as prescribed in rule 7, shall be payable, for conversion of land held by tenant for establishment a tourism unit as defined in clause (r) of sub-rule (1) of rule 2 upto [31.3.2015]

[Substituted vide GSR No. 6 Notification No. F6(6) Revenue 6/92/Part/8 dated 20.3.2008, Published in Rajasthan Gazette Part IV(C)(1) dated 5.4.2008.]

.]

(2A)

[No conversion charges as prescribed in Rule 7 shall not be payable for conversation of land held by tenant for setting up of agro-processing and agri-business enterprises whose project is sanctioned before 31.3.2014 under the policy for promotion for agro-processing and Agri-business-2010.]

[Substituted by Rajasthan Notification G.S.R. 30, dated 24.4.2013 (w.e.f. 5.4.2007).]

(3)

[Fifty percent of the conversion charges shall be charged in case of conversion of land for establishment of eligible unit as approved by the prescribed authority under the provisions of Rajasthan Investment Promotion Scheme, 2003.]

[Inserted vide No. F-6(6) Revenue-6/92P1/7 dated 25.5.2009 Published in Rajasthan Gazette Extraordinary Pt-IV-C(i) dated 11.6.2009.]

(4)

[Fifty percent of the conversion charges shall be charged in case of conversion of land for establishment of enterprise(s) [or for modernization/expansion/diversification of existing enterprise(s) or for revival of sick industrial enterprise(s)]

[Added vide Notification No. F. 6(6) Rev-6/92 Pt/42 dated 10-1-2011. Published in Rajasthan Gazette Part IV C dated 10-2-2011.]

, holding a valid entitlement certificate, under the Provisions of the Rajasthan Investment Promotion Scheme, 2010.]

(5)

[No conversion charges shall be payable in case of conversion of land, on recommendation of the Department of Technical Education for the purpose of establishment of technical education institutions.]

[Added by Notification No. G.S.R. 63, dated 6.9.2011 (w.e.f. 5.4.2007).]

(6)

No conversion charges shall be payable in respect of conversion of land to be used for establishment of industries declared as green category industries by the order of Rajasthan State Pollution Control Board.

(7)

[No conversion charges shall be payable for conversion of land upto an area of 4,65,000 square meters for establishment of,-

(a)

Information Technology Park or Information Technology Campus notified by the Department of Industries or Department of Information Technology and Communication; and

(b)

Information Technology Industries i.e. Information Technology or Information Technology Enabled Service Unit or Company on the condition that such part, campus unit or company on the condition that such part, campus unit or company, as the case may be, shall abide all the provisions of the Environment (Protection) Act, 1986 and rules and regulations made thereunder.]

9.

Prescribed Authority for conversion.

- [(1) A khatedar tenant, seeking permission for conversion of agricultural land for any non-agricultural purpose shall submit an application online or in physical format to the authority prescribed below in Form-A along with the documents specified therein and a copy of receipt as proof of the payment of amount of conversion charges. If application is submitted online then hard copy of complete application shall also be required to submit within 7 days to the prescribed authority:

Purpose of Conversion

Prescribed Authority

1

2

(a) Residential unit

Tehsildar upto 2500 sq. meters.

(b) Residential Colony/project

(i)Sub-Divisional Officer.-Where total area

does not exceed 10,000 square meters

(ii)Collector.-Where total area does not exceed

ceiling area

iii)State Government.-Where total area exceeds

ceiling area.

(c) Commercial purpose

(i)Sub-Divisional Officer.-Where the total area

does not exceed 2000 square meters (but excluding cinema, petrol pump, explosive magazine, multiplex, hotel, resort). _

(ii)Collector.-All cases of commercial purposes

where the total area does not exceed 1,00,000 square meters.

(iii)State Government.-All cases of commercial

purposes where the total area of lands exceeds 1,00,000 square meters.

(d) Industrial Area/Industrial purpose

(i) Sub-Divisional Officer.-Where total area does not exceed 50,000 square meters (But excluding tourism unit)

(ii) Collector.-Where total area does not exceed ceiling area including tourism unit

(iii) State Government.-All cases where the total area exceeds ceiling area

(e) Salt manufacturing purpose

(i) Sub-Divisional Officer.-Where total area does not exceed 2,00,000 square meters

(ii) Collector.-Where total area exceeds 2,00,000 square meters.

(f) Public Utility purpose

(i) Sub-Divisional Collector.-Where total area does not exceed 5000 square meters

(ii) Collector.-Where total area does not exceed 1,00,000 square meters

(iii) State Government.-Where total area exceeds 1,00,000 square meters

(g) Institutional purpose and Medical facilities

(i) Sub-Divisional Officer.-Where the total area does not exceed 10,000 square meters

(ii) Collector.-Where total area does not exceed 1,00,000 square meters

(iii) State Government.-Where total area exceeds 1,00,000 square meters

(h) SEZ

State Government

(i) Agro processing or Agri-marketing unit

(i) Collector.-Where area does not exceed 1,00,000 square meters.

(ii) State Government.-Where area exceeds 1,00,000 square meters

(j) Solar farm/Solar Plant/Solar Power Plant, Wind Farm/Wind power plant

(i) Sub-Divisional Officer.-Where total area does not exceed 50,000 square meters.

(ii) Collector.-Where total area does not exceed ceiling area

(iii) State Government.-All cases where the total area exceeds ceiling area

(k) [Hydrocarbon exploration

[Added by Rajasthan Notification No. G.S.R. 35, dated 24.4.2017 (w.e.f. 5.4.2007).]
Collector]

Provided that if residential colonies/projects are being set up on the Khatedari land situated partially under the jurisdiction of urban bodies and its peripheral belt and partially under rural area, then the conversion of Khatedari lands shall be done by the appropriate competent officers authorized by the State Government under Sec. 90-A of the Act and the rate of conversion shall be charged for the whole area according to the rates specified by Urban Development and Housing Department for the Urban areas and the conversion charges charged for the land falling under the rural area shall be deposited in the Government Revenue Head through challan.

(2)

For setting up of residential colonies/projects in rural area, 40% of total land shall be reserved for public facilities

including roads and remaining 60% land shall be utilized for residential colonies/projects including 50% area of total land for commercial and institutional purpose. The conversion charges at the rate of residential colony/project shall be payable on the total area of the residential colonies/projects. The layout plan/building plan/certificate of completion of the project for residential colony/project/industrial area/ industrial estate in rural areas shall be approved by a committee consisting of the following:-

- 1
District Collector
Chairperson
- 2
Additional District Collector (Administration)
Member-Secretary
- 3
Sub Divisional Officer concern
Member
- 4
Exclusive Engineer posted in Zila Parishad
Member
- 5
Zonal Senior Town Planner/Deputy Town Planner of the Town Planning Department
Member

The Committee shall approve the lay out plan if it fulfils the conditions mentioned above and it has an approach- way to the project not less than 30 feet in the width and such approved lay out plan shall be part of the conversion order. No lay out plan is required to be approved for any other purpose but the approach road to the proposed land is required :

Provided that once an applicant is allowed to covert his land for industrial purpose in a district, he shall be allowed to convert other price of khatedari land for the same industrial purpose or its expansion in the same district only if the existing industry for the same purpose is running :

Provided further that no application for conversion shall be required where tenant desires to establish a micro, small scale industrial unit, kjawa (small brick-kiln) or desire to use of land for institutional purpose, medical facilities purpose or public utility purpose on his own khatedari land upto an area not exceeding one acre and such land shall be deemed to have been converted for such a micro, small scale industrial unit, kjawa (small brick kiln), institutional purpose, medical facilities or public utility purpose. No conversion charges shall be payable for such conversion :

Provided also that no application for conversion shall be required, if the entire piece of land and building constructed thereon is to be used exclusively for setting up of Information Technology Industry with the permission of Empowered Committee on Investment chaired by the Chief Secretary. However, the conversion charges shall be payable under these rules:

Provided also that in case of heritage hotels, if parking arrangement is made available by the owner in premises or elsewhere, the requirement of width of approach road shall not be applicable.]

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(3)
The prescribed authority upto the rank of Collector shall, [within 90 days]
[Substituted 'within 45 days' by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

of the receipt of the completed application along with documents prescribed therein after making necessary enquiry, issue an order of conversion in Form-B or inform the applicant of the rejection of the application or the balance amount of the conversion charges to be deposited:

Provided that no such order of conversion or regularisation shall be passed by the prescribed authority where the application relates to agricultural land falling within the revenue villages of Oria, Utaraj, Aorna Jawai, Achalgarh and Salgaon of Tehsil Abu -Road of District Sirohi without prior approval of the State Government.

(4)
The prescribed authority shall, within a period of 15 days of the date of receipt of a copy of challan, indicating the amount of balance amount of conversion charges deposited by the applicant, as intimated under sub-rule (3) issue an order of conversion in Form "B".

(5)

[In case the prescribed authority fails to issue an order under sub-rule (3) or (4) within the specified period, he shall be liable for disciplinary action under relevant rules, where conversion order is to issued by prescribed authority upto the rank of Sub Divisional Officer within the prescribed period and application is complete in all respect then the Collector shall pass necessary order regarding conversion within 30 days and in case prescribed authority is Collector then the Divisional Commissioner shall pass necessary order regarding conversion with 30 days. Such orders shall be deemed to have been passed by the prescribed authority in exercise of its power vested under sub-rule (3) or (4), as the case may be.]

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(6)

In cases where the State Government is the prescribed authority, the State Government may, after the receipt of completed application alongwith documents prescribed therein, after making necessary enquiry issue an order of conversion in form "B" and inform the applicant about rejection of the application or the balance amount of premium. If amount of balance of premium is deposited within 15 days and copy of challan indicating amount of balance of conversion charges submitted to State authority he shall issue an order of conversion in Form 'B'.

(7)

[In areas notified by the State Government as "agro processing regions", for conversion of land for setting up of non-polluting agro-processing industries, no examination shall be required for suitability of land. The conversion order shall be issued after verification of title within two weeks of depositing of requisite conversion charges and documents of title.]

[Inserted vide Notification No. F. 6(6) Revenue 6/92/Part/24 dated 14.10.2010, Published in Rajasthan Gazette Part (IVC) dated 29.12.2010.]

9A.

[Tatkal conversion.

[Inserted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(1)

A khatedar tenant seeking permission for tatkal conversion of agricultural land for any non-agricultural purpose shall submit an application online or in physical format in Form-A in the manner provided in sub-rule (1) of Rule 9 along with the documents prescribed therein and a copy of receipt as proof of the payment of amount of conversion charges for area sought to be converted and tatkal conversion charges of rupees ten thousands and rupees five per square meter (non-refundable and non-adjustable with conversion charges)

(2)

The prescribed authority shall decide the application in manner prescribed in sub-rule (3) of Rule 9 within fifteen working days excluding the date of submission of application. Where conversion order is not issued by the prescribed authority upto the rank of the Sub Divisional Officer within the prescribed period mentioned above and application is completed in all respect then the Collector shall pass necessary orders regarding conversion within ten working days and in case where the prescribed authority is Collector then the Divisional Commissioner shall pass necessary order regarding conversion within ten working days. Such orders shall be deemed to have been passed by the prescribed authority in exercise of its power vested under sub-rule (3) of Rule 9.]

[Added by Rajasthan Notification No. G.S.R. 63, dated 7.9.2017 (w.e.f. 5.4.2007).]

10.

Change in purpose of Conversion.

- [(1) If a person, after the issue of conversion order under Rule 9 for any specific purpose, intends to use it other non-agricultural purpose, he may submit an application online or in physical format in Form-C along with a copy of receipt as proof of deposit of the payment of the difference amount of conversion charges, if any. If application is submitted online then hard copy of complete application shall also be required to produce within 7 days to the prescribed authority.]

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(2)

If a person after issue of conversion order under rule 9 for establishment of a Tourism unit which is not covered under the definition of Tourism unit or at any time convert an established Tourism Unit into such unit which is not covered

under the definition of a Tourism Unit, then such unit shall be treated as a commercial unit and he shall be liable to pay difference of conversion charges accordingly. The prescribed authority shall issue a revised conversion order.

(2-A) If a person at any time after issue of conversion order for the purpose of establishment of green category industry under these rules, converts the established industry .

(3)

If a person, to [Whose land has been converted]

[Expression Substituted vide Notification No. F9(217) Revenue 6/2008/13 dated 11.6.2009 Published in Rajasthan Gazette Part IV-c (i) dated 22.6.2009.]

under any Rules framed under the Act before the commencement of these Rules for any specific nonagricultural purpose, intends to use it for any other non-agricultural purpose, he shall submit an application to the prescribed authority in Form "C" and shall deposit the conversion charges as prescribed under these rules.

(4)

The prescribed authority shall follow, the same procedure as laid down in sub-rules (3), (4), (5) and (6) of rule 9 in disposing off an application under sub-rule (1) or [sub-rule (3)]

[Expression Substituted vide Notification No. F9(217) Revenue 6/2008/13 dated 11.6.2009 Published in Rajasthan Gazette Part IV-c (i) dated 22.6.2009.]

and issue a revised conversion order in Form "D".

11.

[Transfer of land converted for Non-Agricultural purpose.

[Substituted by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

- Any land duly converted for any non-agricultural purpose under these rules, may be transferred:

Provided that any transfer made without permission from the prescribed authority prior to commencement of the Rajasthan Land Revenue (Conversion of agricultural land for non-agricultural purposes in rural areas) (Amendment) Rules, 2012 may be regularized by the prescribed authority on application made by the transferee along with payment of 25% of the conversion charges.]

12.

[Entry in revenue record after conversion.

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

(1)

After issue of conversion order by the prescribed authority, the Tehsildar shall reduce the area from Khatedari land by making necessary entries in the revenue records.

(2)

After the conversion of land it shall be entered as non-agriculture land along with the purpose for which land has been converted in column of soil classification of jamabandi.

(3)

The copy of approved layout plan superimposed on converted khasra numbers shall be attached with jamabandi.

(4)

In case of transfer of converted land by the khatedar tenant, he shall inform about such transfer to the Tehsildar. On the basis of deed of transfer the Tehsildar shall open mutation in Form P-21 of the Rajasthan Land Revenue (Land Records) Rules, 1957. The Tehsildar shall maintain a separate mutation register for land converted for non-agricultural purposes. On subsequent transfer of land converted for non-agricultural purposes in favour of any other person, the subsequent entry shall be made in the mutation register.

(5)

Any person who got converted his agricultural land under these rules or the rules time being in force in rural areas for conversion of agriculture land, for any non-agricultural purposes or his transferee may, apply at any time along with conversion order and deed of transfer of land in his favour, to the Tehsildar concerned for entry of his name and soil classification in the mutation register. On receipt of application, the Tehsildar shall make necessary entries in the mutation register maintained for the purpose.]

13.

Regularization of unlawful conversion.

(1)

If a person who used agriculture land for any non-agriculture purpose without permission shall submit an application for regularization of the conversion to the prescribed authority along with a copy of the challan depositing the four times of the conversion charges as prescribed in rule 7:

[Proviso deleted]

[Proviso deleted vide Notification No. F. 6(6) Rev-6/92 part/8 dated 26.4.2011, Published in Rajasthan Gazette Part IV(C) I dated 29.4.2011.]

[Provided that in case if any person submits an application for regularization upto 31st December, 2018, such application shall be accompanied with a copy of challan depositing one and half times of conversion charges as prescribed in Rule 7.]

[Added by Notification No. G.S.R. 6, dated 6.3.2018 (w.e.f. 5.4.2007).]

(1A)

[The prescribed authority may regularize the unlawful conversion to the extent to which he is authorised to grant the permission for conversion under rule 9 of these rules.]

[Rule (1A) of Rule 13 inserted vide Notification No. F. 6(6) Rev-6/92 part/8 dated 26.4.2011, Published in Rajasthan Gazette Part IV(C)I dated 29.4.2011.]

(2)

The prescribed authority shall follow the same procedure for granting or refusing permission, as prescribed in rule 9.

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14.

[Use of land after conversion.

[Rule 14 substituted vide Notification No. F. 9(32) Rev-6/2009/4 dated 19.1.2010, Published in Rajasthan Gazette Part IV(C) I dated 10.6.2010.]

- Any agricultural land converted for a non-agricultural purpose, shall be used for such converted purpose within a period of two years from the date of issue of the conversion order or such longer period as the State Government may prescribe keeping in view of nature of the project and the quantum of investment required to be made in the completion of the project failing which the conversion order shall be withdrawn and the amount of conversion charges deposited shall be forfeited to the State Government:

Provided that the said period of two years or the period prescribed by the State Government, as the case may be, may be further extended by the State Government if the State Government is satisfied about the reason on account of which the land could not be utilised the prescribed period:]

[Provided that if any person fails to use of land for such converted purpose within the period stipulated above, then the period may be extended by the Collector for next five years on payment of twenty five percent amount of the conversion charges prevailing at the time of extension of such land by him. If the land is not used for the said non-agricultural purpose within such extended period the conversion order shall be withdrawn]

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

[Provided also that if any person who got converted his agricultural land after the commencement of these rules fails to use land within prescribed period or extended period and such period is lapsed before 16th January, 2012 and the conversion order has not been withdrawn, the period may be extended by the Collector for next five years on payment of twenty five percent amount of the conversion charges prevailing at the time of extension of such land by the such person. The period shall be counted from the date of commencement of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-agricultural Purposes in Rural Areas) (Amendment) Rules, 2012. If he desires to further extension of the period, the Collector may, after charging hundred percent amount of conversion charges prevailing at the time extension, extend the period for another five years:

Provided also that any person who got converted his agricultural land under the Rajasthan Land Revenue (Conversion of Agriculture Land for Non-agriculture Purposes in Rural Areas) Rules, 1992 and fails to use such land within two years from the date of issue of conversion order or within extended period and the conversion order has not been withdrawn,

may apply to the Collector within six months from the date of commencement of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas) (Second Amendment) Rules, 2016 for extension of period. The Collector may, after such inquiry as he deems fit, extend period upto two years after charging hundred percent amount of conversion charges prevailing at the time of extension.]

[Added by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

14A.

[Refund of conversion charges.

[Inserted by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

- No conversion charges shall be refunded except where application of conversion is rejected or the applicant withdraws his application before issuing conversion orders. In such cases 5% administration charges shall be deducted, from the amount deposited for conversion charges.]

15.

Eviction of Trespasser.

- A person, using any land ,in contravention of rule 4 or the land not recorded in his khatedari tenancy, for any non agricultural purpose, shall be liable to eviction in accordance with the provisions of section 91 of the Rajasthan Land Revenue Act, 1956.

16.

Interest.

- A person, who fails to deposit the amount of conversion charges within the time specified by the prescribed authority shall be liable to pay interest at the rate of twelve. percent per annum from the expiry of such period.

17.

Deposit of conversion charges or penalty or interest.

- The amount of conversion charges or interest shall be deposited under the relevant revenue receipt head of the State Government, applicable from time to time, by a challan in a treasury or bank handling Government business.

18.

[Payment of conversion charges to Gram Panchayat.

[Substituted by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

- The conversion charge deposited under these rules may be paid by the State Government to the Gram Panchayat concerned, at the end of financial year.]

19.

Recovery of arrears.

- An arrear of conversion charges or interest, outstanding against a person under these rules, shall be recoverable as arrears of the land revenue under the Rajasthan Land Revenue Act. 1956 (Act

No.15 of 1956

).

19A.

[Check list.

[Inserted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

- After receiving of application in Form-A, a check list shall be prepared in Form-F.

19B.

Layout plan and building plan.

- After issuing of conversion order in Form-B, the lay out plan and building plan shall be followed as prescribed in Form-G.]

20.

Repeal and Saving.

- The Rajasthan Land Revenue (Conversion of Agriculture Land for non-agriculture purposes in Rural Area) Rules, 1992 are hereby repealed:

Provided that such repeal shall not affect any order made, action taken, effects and consequences of anything done or suffered there under or any right, title, privilege, obligations or liability already acquired, accrued or incurred there under or any enquiry conducted, verification made or proceedings taken in respect thereof.

[Form-A

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

]

[See rule - 9(1)]

Application for Conversion of Agricultural Land for Non-Agricultural Purpose

To

The Prescribed Authority

(State Government/District Collector/Sub-divisional Officer/Tehsildar)

Sir.

I/We hereby apply under rule 9 of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural purposes in Rural Areas) Rules, 2007 for the conversion of agricultural land held in my/our khatedari tenancy for non-agricultural purpose, the particulars whereof are given here/under:

1. Name/Names of tenant or co-tenants
2. Aadhar Number
3. Bhamashah number
4. father's/husband's name
5. Address with mobile number
6. E-mail ID (if any) -
7. Whether the applicant is a member of SC/ST (Yes/No)
8. Details of the land sought to be converted:

(a)

Name of the District

(b)

Name of the Tehsil

(c)

Name of the Village

(d)

Khasra No./Nos. of the land along with total area of each khasra no.

Note. - Enclose self attested copy of the latest Jamabandi.

9. Area (In hectare or sq.mt.) applied for conversion indicating the exact location of such area in the revenue map

Note. - (i) Enclose self attested copy of the relevant part of the revenue map, showing the land sought to be converted in red ink.

(ii)

Lay out plan in case of residential colony or industrial area.

(iii)

How many trees standing on the proposed land for conversion and how many trees likely to be removed, details thereof.

(iv)

Applicant is ready for plantation of three trees in lieu of one tree. He shall submit self attested affidavit.

10. Purpose of conversion.....

11. Whether the application is submitted for regularization of the construction made prior to coming into force of these Rules.

12. Rate of conversion charges payable.

13. No. and date of the challan

14. Amount deposited

(Enclose copy of challan)

* Minimum amount to be deposited as prescribed in Rule 7

15. Any other relevant information.

I/We hereby certify that the above particulars are correct according to my/our knowledge and belief.

Yours faithfully, Signature/s of Applicant

Place:

Dated:

Acknowledgment

Name of applicant

Receipt No.

Date

Khasra number.....in village.....

Tehsil.....

District.....

Form-B

[See rule 9(3), (4) (6)]

Office Of Prescribed Authority (State Government/district Collector/S.D.O./tehsildar)

No.

Date:

Conversion Order

On the application of Shri of village Tehsil, agricultural land held by him in his khatedari tenancy is hereby converted for a non-agricultural purpose under rule 9 of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural in Rural Areas) Rules. 2007, the particulars of which are given as under:

1. Names of applicant khatedar/tenants with father's/ husband's name and complete address.

2. Whether the applicant is a member of SC/ST.

3. Details of the land converted:

(a)

Name of the village/Gram Panchayat/Tehsil.

(b)

Khasra No. of the land alongwith area of each Khasra No. (in hectare).

(c)

Area converted(in hectare or wq. mtr.)

(d)

indicating the area of each Khasra No.

Note : A duly verified copy of the relevant part of revenue map showing the land converted for non-agricultural purpose is enclosed.

4. Purpose of conversion.

5. Rate of conversion charges payable.

6. Amount of premium deposited with No. and date of challan.

7. Amount of penalty deposited, if any, with date and no. of challan.

8. Amount of interest deposited, if any, with date and No. of challan.

9. Whether the order issued under Rule 13 for regularization.

10. Other particulars, if any.

11. The above conversion order shall be subject to the following conditions:-

(i)

The land converted for the above non-agricultural purpose shall not be used for any other non-agricultural purpose, without obtaining prior permission of the prescribed authority.

(ii)

if the applicant fails to use the land for the converted purpose [within a period or extended period, if any, specified in Rule 14 of these rules,]

[Substituted 'within a period of 2 years from the date of the issue of this order' by Notification No. G.S.R. 175, dated 16.1.2012 (w.e.f. 5.4.2007).]

the permission shall be withdrawn and the premium money deposited by the applicant shall be forfeited.

(iii)

No land as mentioned in rule 4 shall be used for any non-agricultural purpose.

(iv)

No part of the land converted for public utility purpose shall be used for any other non-agricultural purpose without valid permission from the prescribed Authority.

(V)

[The applicant is allowed to remove.....trees from the converted land on the condition that he will plant three times of shady or dense trees in lieu of the removed trees within a year, failing which he shall be charged Rs. 500 per year which is remained unplanted in form of penalty in revenue head.]

[Added by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

Signature of the Prescribed Authority(State Government/District Collector/SDO/Tehsildar)

Seal of the Prescribed Authority

No.

Date:

Copy to:

1. The District Collector

2. Gram Panchayat

3. The applicant Shri

Signature of the Prescribed Authority

[Form-C

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

]

(See rule 10)

Application for Change in Purposes of Conversion

To

The Prescribed Authority

(The State Government/District Collector/Sub-divisional Officer/Tehsildar)

Sir,

I/We hereby apply under Rule 10 of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purpose in Rural Areas) Rules, 2007 for change in purpose of conversion from (purpose) to (purpose) the particulars whereof are given here under:

1. Name/Names of tenant or co-tenants

2. Aadhar number

3. Bhamashah number

4. Father's/husband's name

5. Address with mobile number

6. E-mail ID (if any)

7. No. and date of original conversion order

(Note. - Enclose a photo copy of the order).

8. Purpose for which the land was converted.

9. Revised purpose of conversion.

10. Details of the land, the purpose of which is sought to be changed:

(i)

Name of District:

(ii)

Name of Tehsil:

(iii)

Name of Village:

(iv)

Khasra No./Nos. of the land with total area of each Khasra No.

11. Area (in sq. mtrs.) sought to be converted for revised purpose, indicating the exact location of such area in the map.

Note: Enclose self attested copies of relevant part of the revenue map).

To be filled by office concerned

1. Rate of conversion payable for the original conversion.

2. Rate of conversion payable for the revised conversion.

3. Amount of difference of conversion.

4. No. and date of the challan depositing difference amount of premium (Note: Enclose original copy of challan).

5. Any other relevant information.

I/We hereby certify that the above particulars are correct according to my/our knowledge and belief.

Place:Date:

Your faithfully,Signature of ApplicantName of Applicant

Acknowledgement

Applicants name

Receipt No.

date

Khasra No.....in village.....Tehsil.....District.

[Form-D

[Substituted by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

]

[(See rule 10 (4))

Office of the Prescribed Authority (State Government/District Collector/S.D.O./Tehsildar

No.

Dated:

Revised Conversion Order

On the application of Mr. Mrs.of village.....Tehsil..... the agricultural land already converted for a non-agricultural purpose is here by converted for revised non-agricultural purpose under Rule 10(4) of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural in Rural Areas) Rules, 2007, the particulars of which are given as under:

1. Name/Names of tenant or co-tenants:

2. Aadhar number:

3. Bhamashah number

4. Father's husband's name:

5. Address with mobile number

6. E-mail ID (if any)

7. Whether the applicant is a member of SC/ST.:

8. Purpose of original conversion indicating the Number and date of the order.

9. Revised Purpose of conversion.

10. Details of the land converted:

(a)

(i)

Name of District

(ii)

Name of tehsil

(iii)

Name of village

(b)

Khasra No. of the land along with area of each Khasra No. (in hectare).

(c)

Area converted (in sq. mtr.)

Indicating the area of each Khasra No.

Note. - A duly verified copy of the relevant part of revenue map showing the land converted for revised non-agriculture purpose is enclosed.

11. Rate of conversion payable on original conversion.

12. Amount of premium deposited with original

13. Amount of penalty deposited, if any. with date No. of challan.

14. Amount of interest deposited, if any, with date and No. of challan.

15. Other particulars, if any

16. The above conversion order shall be subject to the following conditions:-

(i)

The land converted for the above non-agricultural purpose shall not be used for any other non-agricultural purpose, without obtaining prior permission of the prescribed authority.

(ii)

If the applicant fails to use the land for the revised converted purpose within a period of 2 years from the date of the issue order, money deposited by the applicant shall be forfeited.

(iii)

No land as mentioned in Rule 4 shall be used for non-agricultural purpose.

(iv)

No part of the land converted for public utility purpose shall be used for any other non-agricultural purpose without valid permission from the Prescribed Authority.

Signature of the Prescribed Authority (State Government/District Collector/SDO Tehsildar)

Seal of the Prescribed Authority.

No.

Date:

Copy to:

1. The District Collector.....

2. Gram Panchayat.....

3. The Applicant Shri.....

Signature of the Prescribed Authority.

[Form-F]

[Added by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

[See Rule 19-A]

Check List

The report prepared by the Office of Tehsildar on the application submitted under the Rajasthan Land Revenue (Conversion of Agricultural Land to Non-agricultural Purposes in Rural Areas) Rules, 2007 in the following format: -

1. Name of khateadar father's name: -

2. Village Tehsil District: -

3. Date of application: -

4. Khasra number with area: -

5. Soil classification: -

6. Whether land is affected by Master plan/urban area/Peripheral area or not:-

7. Purpose of conversion: -

8. Whether application is submitted in Form A (agricultural land) or in Form C (for earlier converted land):-

9. Whether land proposed is restricted under Rule 4, if yes details thereof: -

10. Whether proposed land as used by tank bed, river, nala, lake or any way or not: -

11. Details of area sought for conversion: -

(i)

Area in square meters: -

(ii)

Conversion charges under Rule 7: -

(iii)

DLC rates per square meters: -

(a)

Near vicinity of abadi/unirrigated: -

(b)

Distance from abadi for unirrigated land: -

(c)

Irrigated: -

(iv)

Conversion charges deposited: -

Challan No.

Date

Amount

head

Exemption of conversion charges under Rule 8, if applicable

(v)

Difference of conversion charges, if any: -

12. Proposal of Tehsildar: -

1. Latest copy of jamabandi: -

2. Revenue map (including approach way and showing activities happening nearby: -

3. Proposed lay out plan including roads and facilities area shown (40 percent area should be left for road and facility purpose) by enclosing affidavit (in case of residential project/industrial project: -

4. Site report (parcha moka): -

5. Patwari report in prescribed format: -

6. Distance of proposed land from: -

(i)

National Highways: -

(ii)

State Highways: -

(iii)

Mega Highways: -

(iv)

Major District Road: -

(v)

Other road: - (from the middle of road land shall be measured and no construction shall be allowed as per guidelines of Indian Road Congress and area shall be shown)

(vi)

distance from abadi of a village in case conversion is sought for industrial purpose: -

7. Situation of land on spot: -

8. whether there is any construction on proposed land or not. If construction exists the area so used: -

9. Proposed penalty on construction made without approval: -

10. whether proposed land is under acquisition or not, details thereof. -

11. whether applicant is holding land in excess of ceiling limit, if yes the area of land. -

12. whether the applicant has converted his khatedari land previously? If yes then: -

(1)

Purpose of conversion

(2)

Khasra number

(3)

Area measuring

(4)

Prescribed Authority

(5)

Date of conversion order with file number

13. Lay out plan map placing on khasra number: -

14. Approach road shall be shown in layout plan or the khatedar using the road for last 10 years on khatedari land: -

15. Whether the proposed roads width is according to guidelines or not: -

16. If any high tension line is running on the khatedari land, may be shown in the layout plan shall be distinguished (the

area for the purpose of high tension line is used not liable to convert): -

17. Whether any case is pending before any court of law for the proposed land if yes details thereof: -

18. Proposed lands distance from the railway line or railway land: -

19. Whether any health hazardous industry is running near the proposed land, if yes the distance from the land: -

Verification and recommendation of prescribed authority

All the above mentioned facts are verified from records. Accordingly the case is recommended for conversion/regularization

Tehsildar/Sub Divisional Officer/District Collector

[Form-G]

[Added by Notification No. G.S.R. 51, dated 17.10.2016 (w.e.f. 5.4.2007).]

[See Rule 19-B]

Procedure for layout plan and building plan approval

In rural areas for conversion of agricultural land into non-agricultural purposes the following procedure shall be adopted for layout plan and building plan as required in the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-Agricultural Purposes in Rural Areas) Rules, 2007: -

1. For residential colony/project/ industrial area/industrial estate layout plan shall be approved by the Committee headed by Collector under Rule 9 of Rules, 2007.

Provided that in the matters where the prescribe authority is the State Government the layout plan shall be submitted by the applicant to the Collector concerned and the layout plan shall be approved by the committee headed by the Collector constituted under Rule 9 of Rules, 2007.

2. The building plan approval is necessary for residential unit for an area of 500 square meters and above. The copy of building plan shall be submitted in the office of prescribed authority. Besides this in the matter of residential unit of 300 square meters or above the water harvesting management system shall also be made.

3. The building plan shall be approved as per the prevalent norms/guidelines of nearest Nagar Nigam/Nagar Parishad/Nagar Palika/UIT/Development Authority bye-laws of proposed land.

4. In the matter of 500 square meters area or above for residential unit/residential colony project industrial area/industrial estate/commercial and institutional purpose of the building plan approval shall be issued after the technical advice, obtained from the Town Planner of the State Town Planning Department.

5. In the matter of rural areas of the Districts, which are included in the National Capital Region the building plan approval shall be issued after obtaining technical approval from the Senior Town Planner (NCR). After the technical advice building plan approval shall be given as per the norms/guidelines of Nagar Nigam/Nagar Parishad/Nagar Palika/UIT/Development Authority situated in the vicinity of proposed land.

6. The building plan shall be approved by the prescribed authority within sixty days from the date of receipt of application. In case the building plan is not approved within specified period, the applicant will give 30 days notice to the Prescribed Authority. If building plan is not approved by the Prescribed Authority it shall be deemed to be approved and the applicant may construct as per the bye-laws.

7. The applicant will submit his building plan and relevant papers to the prescribed authority. In case the building plan is approved on misrepresentation or false grounds, the Prescribe Authority may cancel the approval at anytime. The applicant shall wholly responsible and if any amount deposited in this regard, shall be forfeited by the authority.

8. The amount of fees for approval of building plan shall be calculated as per bye-laws of the nearest Nagar Nigam Nagar, Parishad, Nagar Palika/UIT, Development Authority and shall deposit in Revenue Head of Revenue Department.

Notifications

(1)

[Committee for the purpose of setting up of residential colony/project in rural area-Constituted.-S.O 74.

[Notification No. F. 6(6) Revenue VI/92-Part/17. dated 25.4.2007, Rajasthan Gazette Extraordinary Part IV-C(II), dated 2.5.2007, Page 57.]

- The State Government hereby constituted the following committee under sub-rule (2) of Rule of the Rajasthan Land Revenue (Conversion of Agricultural Land for Non-agricultural Purpose in Rural Areas) Rules, 2007, for the purpose of setting up of residential colony/project in rural areas.

1

District Collector

: Chairman,

2

A.D.M. (Administration)

: Member Secretary.

3

S.D.O. of the concerned sub-division of the

District

: Member

4

Executive Engineer posted in Zile Parishad

: Member

5

Zonal Senior Town Planner/Deputy Town Planner of

Town Planning Department

: Member

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